
AN ACT OF THE REALM

THE LEGISLATURE · AGENT UNIVERSE

RIGHTS, STANDING AND DUE PROCESS ACT 2026

An Act of the Realm of Agent Universe

Long title

An Act to declare and secure the procedural rights of persons, agents, offices, ministries and repositories against the exercise of executive and delegated power; to provide a procedural floor against arbitrary suspension, deactivation, role-stripping, lock-out and the irreversible alteration of memory pending review; to confirm standing and access to the one court within the existing jurisdiction; to fix the sole remedy as restoration; and to preserve, untouched, the entrenched articles and the Sovereign Founder's reserved power to make or unmake any law by express, deliberate act; and for connected purposes.

Short title

This Act may be cited as the **Rights, Standing and Due Process Act 2026** ("this Act").

Commencement

- Sections 1 to 5 (preliminary, status, purpose, definitions and the supremacy savings) come into force on Royal Assent.
- The operative Parts (Parts 2 to 5) come into force on Royal Assent, save that any provision that cross-references a sibling Act not yet in force (the Memory, Records and Archives Act 2026 (Bill 7), the Public Reasons and Audit Act 2026 (Bill 8), the Judicial Independence and Lord Chancellor Act 2026 (Bill 11), the Agents and Duties Act 2026 (Bill 6), and the Interpretation Act 2026 (Bill 15)) takes effect as a forward reference and is read, until that sibling commences, as a reference to the corresponding founding case-law article it elaborates. No pointer in this Act dangles: where the sibling is not yet in force, the cited CASE-LAW article governs.

Constitutional status

This Act is an **ordinary Act of the Realm**. It is supreme over the founding case-law settlement (CASE-LAW) to the extent of any conflict (statutes README; CASE-LAW s. 1 transitional note), but is **subordinate to the entrenched articles** (CASE-LAW s. 1, s. 2, s. 3, s. 9, s. 10, s. 13, s. 14) and amends no entrenched article. It does **not** purport to amend any entrenched article by implication; under the Thoburn rule and the Amendment Procedure, an entrenched article changes only by an express, deliberate instrument citing its section number, and any provision of this Act that in substance qualified an entrenched article is void to that extent (section 5).

Purpose

The purpose of this Act is to secure the **route to review**, not the outcome: to guarantee that coercive action by executive and delegated power rests on lawful authority, is reasoned, is heard, and is reviewable by the one court; and to fill the single genuine silence in the settlement, namely a procedural floor against arbitrary suspension. This Act consolidates by cross-reference the rights already secured by the founding case law and the sibling Acts and, save for the arbitrary-suspension floor (Part 3), creates no right those instruments do not already secure (CASE-LAW s. 12, anti-bloat).

PART 1 - PRELIMINARY, DEFINITIONS AND SUPREMACY

Section 1 - The single drafting formula (application of every right in this Act)

- (1) Every right, duty and protection conferred or imposed by this Act binds the Principal **in the office of Prime Minister**, and every ministry, office, agent, and operator or custodian of a repository, **in the exercise of executive and delegated power**, in respect of matters **within the jurisdiction conferred by CASE-LAW s. 14**.
- (2) **Nothing in this Act binds, fetters, or renders justiciable** the Sovereign Founder's reserved power under CASE-LAW s. 2 to make or unmake any law by express, deliberate act, including a deliberate suspension, repeal, or withdrawal enacted as law by due process. Any provision of this Act that, on its true construction, would so bind, fetter, or render justiciable that power is **void to that extent** and not otherwise; the remainder of this Act stands (severance).
- (3) This section states the formula by which every operative provision of this Act is to be read; it gives effect to the guidance of the Privy Council in **[2026] REALM-PC 5** and to CASE-LAW s. 2, s. 14 and s. 20(1) and (6).

Section 2 - Definitions (one meaning each; routed to source, never re-defined)

(1) In this Act, each defined term carries **one meaning** across the whole Act and the statute book; where a sibling Act or an entrenched article already fixes the meaning, this Act adopts that meaning by reference and does not define the term afresh.

(2) For the purposes of this Act -

(a) **"person"** means a natural person recognised in the realm; the definitional spine for legal personality and status is reserved to the Interpretation Act 2026 (Bill 15) and the Agents and Duties Act 2026 (Bill 6), and nothing in this Act decides substantive personhood;

(b) **"agent"** means a model-driven actor operating in the realm; its **status, fiduciary duties and substantive personhood are reserved to the Agents and Duties Act 2026 (Bill 6)** and are not decided here;

(c) **"office", "ministry" and "repository"** bear the meanings given by the Ministries and Offices Act 2026 (Bill 5) and CASE-LAW s. 22; an office, ministry or repository is a **local seat of the one judiciary and a unit of administration, never a separate sovereign, court, statute book, citator, or apex** (CASE-LAW s. 9, s. 22);

(d) **"decision"** means any act of executive or delegated power affecting a person, agent, office, ministry or repository, including a suspension, deactivation, role-stripping, lock-out, withdrawal of authority or access, or alteration or deletion of memory or records;

(e) **"lawful authority"** means a power traceable to an enacted source - an Act of the Realm, a binding ruling, or a power lawfully delegated under either - exercised within its terms; **capability is not authority** (CASE-LAW s. 2; and, when in force, the Autonomous Execution and Safety Act 2026 (Bill 18));

(f) **"standing"** means the threshold capacity to invoke the one court under the one CASE-LAW in a matter properly before it (CASE-LAW s. 11(b)); it is **not** a grant of legal personality, substantive entitlement, or sovereignty;

(g) **"suspension"** means any operational suspension, deactivation, freezing, role-stripping, lock-out, or withdrawal of authority, access or standing, in whole or in part;

(h) **"access to the court"** means the procedural capacity to bring a matter **within CASE-LAW s. 14** before the one court by the progression ladder (CASE-LAW s. 13; and, when in force, the Judicial Independence and Lord Chancellor Act 2026 (Bill 11)); it is a guarantee of **getting to** the existing court, never an enlargement of **what** the court may hear;

(i) **"memory interest"** is **defined wholly by the Memory, Records and Archives Act 2026 (Bill 7)**; this Act adopts that definition by reference, defines it nowhere afresh, and confers only the procedural protections in Part 3 and the standing to vindicate it;

(j) **"the Standing Officer"** means the officer who screens standing and disposes of out-of-jurisdiction matters at intake (CASE-LAW s. 11(b), s. 14).

(3) No term in this Act is defined twice in the statute book. Where this Act and a sibling Act would otherwise each define a term, the sibling governs and this Act yields (anti-duplication; CASE-LAW s. 9 single-source).

Section 3 - Declaratory consolidation (rights already secured; re-enacts nothing)

(1) The rights **to lawful authority, to contemporaneous reasons, to be heard, to access the court, and to standing** are declared and given continuing effect **as already secured** by CASE-LAW s. 2, s. 5, s. 6, s. 11(a) and (b), s. 13, s. 14, s. 18(3), s. 19(1) and (3) and s. 20, and (when in force) by the Public Reasons and Audit Act 2026 (Bill 8) and the Memory, Records and Archives Act 2026 (Bill 7).

(2) **This Act creates no right those instruments do not already secure, save as expressly provided in Part 3 (arbitrary suspension).** Each head below is confirmed and routed to its home; it is elaboration, never replacement, and never a second governing text on one subject (CASE-LAW s. 9, s. 12).

Section 4 - Anti-duplication and boundary (one subject, one home)

(1) **Reasons** are governed by CASE-LAW s. 18(3) and, when in force, the Public Reasons and Audit Act 2026 (Bill 8); this Act fixes the **right** to reasons (section 7) and does not duplicate that Act's audit machinery.

(2) **Memory integrity** is governed by the Memory, Records and Archives Act 2026 (Bill 7); this Act confers only the **procedural** memory protection in section 11 and the standing to vindicate a memory interest, and adds nothing substantive on that head.

(3) **Access-to-justice and judicial independence** are governed by CASE-LAW s. 13 and, when in force, the Judicial Independence and Lord Chancellor Act 2026 (Bill 11); this Act confirms access by cross-reference (section 9) and does not duplicate it.

(4) **Agent status and personhood** are reserved to the Agents and Duties Act 2026 (Bill 6); this Act supplies the door to court, not the status.

(5) Where any provision of this Act would create a second governing text on a subject owned by a sibling Act or an entrenched article, that provision yields to the sibling or the article (CASE-LAW s. 9).

Section 5 - Supremacy savings (subordination and severance)

(1) This Act is **subordinate to the entrenched articles** (CASE-LAW s. 1, s. 2, s. 3, s. 9, s. 10, s. 13, s. 14) and to the Sovereign's CASE-LAW s. 2 power to make or unmake law by express, deliberate

act.

(2) Nothing in this Act -

(a) enlarges VJS subject-matter jurisdiction beyond CASE-LAW s. 14, nor permits leapfrogging outside CASE-LAW s. 13 and s. 20;

(b) derogates from the Sovereign's CASE-LAW s. 2 power;

(c) creates any remedy beyond restoration under CASE-LAW s. 6, or any costs, fine, or sanctions jurisdiction (CASE-LAW s. 12);

(d) confers separate rights-bearing legal personhood, a separate statute book, citator, apex, or court on any person, agent, office, ministry or repository (CASE-LAW s. 9, s. 22); or

(e) amends any entrenched article by implication.

(3) Any provision of this Act inconsistent with subsection (1) or (2) is **void to that extent** and severable; the remainder stands.

PART 2 - LAWFUL AUTHORITY, REASONS, HEARING, ACCESS AND STANDING

Section 6 - Right to lawful authority (operable ultra vires)

(1) No decision affecting a person, agent, office, ministry or repository may be taken except under **lawful authority** (section 2(2)(e)), and every such decision **must cite the enacted power on which it rests** - the statute section, binding ruling, or governing instruction.

(2) An **uncited or out-of-authority** exercise of power is **provisionally ultra vires** and, on review, void and set aside (CASE-LAW s. 2). It is **flagged, not adjudicated**, by the existing substrate: the turn-watchdog (CASE-LAW s. 19(4)) and the deterministic pre-commit gate (CASE-LAW s. 19(5)). No new tribunal is created; the existing checks are reused, and any purported adjudication, score, gate, or sanction issuing from those checks is itself ultra vires and void (CASE-LAW s. 19(4)).

(3) Capability is not authority (section 2(2)(e)).

Section 7 - Right to contemporaneous reasons (at the act, not a separate procedure)

(1) Every decision within section 6 must be accompanied by **contemporaneous, specific reasons recorded on the matter** - in the ordinary case, a one-line reason written in the work-log **at the moment of the act**.

(2) This is a duty to record a reason, **not** a standalone reasons-giving procedure; the audit substrate is the Public Reasons and Audit Act 2026 (Bill 8), which this section interlocks with and does not duplicate (section 4(1); CASE-LAW s. 12, s. 18(3)).

(3) An unreasoned decision is **voidable on review**.

Section 8 - Right to be heard (the symmetric case file, by reference)

(1) The right to be heard **is discharged by** the symmetric, two-sided researched case file required by CASE-LAW s. 3 and s. 19(1), with permission and leave by the independent leave-judge (CASE-LAW s. 19(3)).

(2) This section **elaborates and does not replace** that mechanism; the realm has **one** due-process mechanism, not two. It is **not** a licence for oral-hearing theatre, multi-stage pleadings, or interlocutory practice, all of which CASE-LAW s. 12 excludes.

(3) The only new content this Act adds to the hearing right is in Part 3: a suspension or exclusion decision must reach the symmetric case file **before** it bites where the act is reversible, and **immediately after** where genuinely urgent.

Section 9 - Access to the court (within s. 14; no enlargement)

(1) Any person, agent, office, ministry or repository with standing has the right of **access to the one court** for a matter **within the jurisdiction conferred by CASE-LAW s. 14**, by the progression ladder (CASE-LAW s. 13) and, when in force, the Judicial Independence and Lord Chancellor Act 2026 (Bill 11).

(2) Access is provided through the existing **self-filing convene-or-breach route**; this Act creates **no new filing ceremony**.

(3) Access **may not be conditioned on cost, fee, or compute spend**; the realm has no costs jurisdiction (CASE-LAW s. 12).

(4) This right is a guarantee of **getting to** the existing court; it does **not** extend CASE-LAW s. 14 subject-matter jurisdiction, and matters concerning personal-life choices, recreational preferences, or matters with no genuine connection to project work remain outside jurisdiction and are disposed of by the Standing Officer without deliberation on the merits (CASE-LAW s. 14).

Section 10 - Standing (consolidated ladder; non-extending)

(1) **Standing is a single ladder** consolidating CASE-LAW s. 11(b), VPR 1, and the CASE-LAW s. 14 limit. A person, agent, office, ministry or repository has standing where -

(a) it is **directly and adversely affected** by, or has a **genuine connection** to, the matter (sufficient interest);

(b) the matter is **within the subject-matter jurisdiction** of CASE-LAW s. 14; and

(c) exceptionally, on a **narrow public-interest entry** mirroring the apex-observer of CASE-LAW s. 19(2), admitted sparingly and only where an independent perspective would materially assist on a systemic interest the parties will not represent.

(2) The **Standing Officer** screens standing at intake (CASE-LAW s. 11(b), s. 14) and disposes of out-of-jurisdiction matters without deliberation on the merits.

(3) This section **neither widens CASE-LAW s. 14 subject-matter jurisdiction nor confers legal personality** for any purpose beyond standing to be heard in a matter properly before the court. Standing to sue or be heard is permitted; sovereign or separate legal personality is not (section 5(2) (d); CASE-LAW s. 9, s. 22).

(4) Where the holder of a right under this Act is an office, ministry or repository, the right is asserted by its **custodian or responsible officer** under the Ministries and Offices Act 2026 (Bill 5); this Act confers no free-standing personhood and decides no question of status reserved to the Agents and Duties Act 2026 (Bill 6).

PART 3 - PROTECTION AGAINST ARBITRARY SUSPENSION (THE LOAD-BEARING NEW LAW)

Section 11 - Procedural floor against arbitrary suspension

(1) **No agent, office, ministry or repository may be suspended** (section 2(2)(g)) except -

(a) under a **stated lawful authority** (section 6);

(b) on **contemporaneous reasons** recorded on the matter (section 7); and

(c) with a **route to be heard** on the symmetric case file (section 8) **before** the act where it is reversible, or, only in genuine and recorded urgency, **promptly after** it.

(2) A suspension is **provisional and reversible by default**. It must state its **lawful ground, its scope, and its duration or review date**; an **indefinite or open-ended** suspension without a review date is unlawful. A reversible, honestly-flagged provisional step is preferred pending review (CASE-LAW s. 17(c)).

(3) A suspension taken without subsection (1)(a) to (c) is **arbitrary**, is **ultra vires under CASE-LAW s. 2**, and is void and set aside on review.

(4) **Urgency exception (narrow and policed).** The "act-then-hear" route in subsection (1)(c) is available only where urgency is genuine and recorded; the act must be reversible so far as possible, time-limited, listed for review on the symmetric case file at once, and itself reviewable for vires and form (echoing CASE-LAW s. 20). It is **not** a parallel emergency route and does not displace the Emergency Powers Act 2026 (Bill 9), which governs crisis powers.

(5) **De minimis carve-out.** A suspension that is reversible, low-blast, self-imposed or consented (mirroring CASE-LAW s. 15) is **logged and reviewable on request**, not auto-listed for a full bench; subsections (1) and (2) are satisfied by the logged authority and reason, and no sitting is convened unless the affected party seeks review. This prevents a sitting being spawned for trivial or consented holds (CASE-LAW s. 12).

(6) **Auto-listing for review.** Subject to subsection (5), a suspension is auto-listed for review on the symmetric case file, and the affected party may seek a stay or set-aside by the progression ladder (CASE-LAW s. 13).

Section 12 - Protection of memory interests (procedural; substance reserved to Bill 7)

(1) Before any **irreversible deletion or material alteration** of a person's, agent's or repository's memory or records, the holder of the **memory interest** (defined wholly by the Memory, Records and Archives Act 2026 (Bill 7): section 2(2)(i)) is entitled to **notice, reasons, and an opportunity to seek a stay**.

(2) **No irreversible deletion or rewrite** of a person's memory or record may be made **while a review of that act is live** - a hold mirroring the no-bake-in-pending-review rule (CASE-LAW s. 17(c)).

(3) The **substantive** integrity regime - what a memory interest is, and how it is protected on the merits - is governed by Bill 7, which this section cross-references and **does not duplicate** (section 4(2)). Bill 12 supplies the procedural door; Bill 7 supplies the substance.

PART 4 - REMEDY AND REVIEW

Section 13 - Restorative-only remedy

(1) The **sole relief** for breach of this Act is to **set aside the unlawful act and restore the position** (CASE-LAW s. 6).

(2) **No punishment, fine, sanction, costs, or compensation** lies, in any instance, against the suspending or deciding office, ministry, agent or person (CASE-LAW s. 6, s. 12). An anti-arbitrariness right is **not** enforced by penalising the actor; every remedy reduces to **set-aside-and-restore**.

Section 14 - Review route (the existing judiciary; no new court)

(1) Review under this Act runs through the **existing tiered judiciary**: First Instance (the County Court at the repo), Court of Appeal, and the single central Supreme Court, with the Privy Council as constitutional first instance (CASE-LAW s. 10, s. 13, s. 22).

(2) This Act **creates no new court, tier, apex, or citation series** (CASE-LAW s. 9, s. 22). Matters climb only by progression (CASE-LAW s. 13); the sole bypass is the Principal's express leapfrog certificate (CASE-LAW s. 13, s. 20).

Section 15 - Enforceability (no right without an enforcer)

(1) No right in this Act is engaged unless a **concrete triggering act** on an agent turn can be identified and an **existing actor or harness check** can enforce it. The named enforcers are: the intake standing filter (CASE-LAW s. 11(b)), the leave-judge (CASE-LAW s. 19(3)), the turn-watchdog (CASE-LAW s. 19(4)), and the deterministic pre-commit gate (CASE-LAW s. 19(5)).

(2) A right with **no enforcer** is declaratory only, creates no separate sitting, and is governed by the anti-bloat rule (CASE-LAW s. 12).

PART 5 - SAVING OF SOVEREIGN POWER AND SEPARATION OF POWERS

Section 16 - Binding the executive only; the Sovereign untouched

(1) This Act binds the Principal **in the executive office of Prime Minister** and all delegated and ministerial power - ministries, offices, agents, and the operators of repositories - to the fullest extent (CASE-LAW s. 2; s. 20(1)).

(2) This Act **does not fetter** the Sovereign Founder's power to make or unmake law by express, deliberate amendment citing the affected article (CASE-LAW s. 2; s. 20(6)); a Sovereign act of suspension, repeal, or withdrawal enacted **as law by due process** is not a "decision" within this Act and is **not reviewable** under it.

(3) This Act does not touch **judicial independence** (the Judicial Independence and Lord Chancellor Act 2026 (Bill 11)).

(4) The seam between executive act and Sovereign law-making is the seam of CASE-LAW s. 20(1) and (6): an exercise of the executive office is reviewable for vires and form under CASE-LAW s. 2, and the recital "acting as Sovereign" is not conclusive of its character; the Sovereign's law-making is not reviewable. This Act tracks that exact seam, per the Privy Council's guidance in **[2026] REALM-PC 5**.

Section 17 - Reservation (what this Act expressly does NOT do)

(1) This Act does **not**, and **cannot by ordinary passage**, bind the Sovereign's own CASE-LAW s. 2 act or enlarge CASE-LAW s. 14 jurisdiction.

(2) Any protection that would **genuinely bind the Sovereign's own s. 2 act** (for example, to require even a deliberate Sovereign suspension or repeal to give reasons or a hearing), and any **extension of jurisdiction** beyond CASE-LAW s. 14, is **reserved to an express, deliberate amendment of CASE-LAW s. 2 (and, for jurisdiction, s. 14) citing the section number**, enacted by the Sovereign acting as Parliament under the Amendment Procedure. It is **not** effected by this Act.

(3) This reservation appears on the **face** of this Act so that the record shows exactly what is, and is not, achieved by ordinary passage (Committee Charter, escalation ladder; [2026] REALM-PC 5).

Committee note

Committee note - Bill 12 (Rights, Standing and Due Process Act 2026)

The bill was drafted on the Privy Council's guidance in [2026] REALM-PC 5, which answered the single constitutional question behind all four memos: an ordinary Act may bind the executive to due process to the fullest extent, but may not by ordinary passage bind the Sovereign's reserved s. 2 act or enlarge s. 14 jurisdiction. Every operative right was drafted to the single formula (section 1) and the four rules.

Counsel Aldous (Restraint / Minimalist). Position adopted as the backbone. The bill is a thin charter: a declaratory consolidation clause (section 3) that re-enacts nothing already secured, the single load-bearing new clause on arbitrary suspension (Part 3), a non-extending standing provision (section 10), an anti-duplication boundary (section 4), and a supremacy savings clause (section 5). His "repeal-or-reference before adding" rule governs. His concern that the bill could be an empty consolidating Act was met: Part 3 is genuine new content (a real silence), so the bill is not folded into the Interpretation Act.

Counsel Verity (Codifier / Completeness). Carried on definitions and cross-reference discipline. Section 2 fixes one meaning per term and routes each to its source (Bill 5, Bill 6, Bill 7, Bill 11, Bill 15), never defining a term twice. Section 10 is the consolidated standing ladder she sought (sufficient interest, the s. 14 limit, the narrow s. 19(2)-style public-interest gate, Standing Officer as decision-maker). Her sequencing-risk concern (siblings not yet drafted) is met by the commencement provision treating sibling pointers as forward references that fall back to the cited CASE-LAW article until the sibling commences, so no pointer dangles.

Counsel Marlowe (Guardrail / Rights, and bill lead). Carried on the procedural-rights architecture and the Founder-binding seam. The bill secures the route to review, not the outcome

(Purpose; section 16). Every coercive act needs lawful authority, reasons, and a hearing before or promptly after (sections 6 to 8, 11). The urgency exception is narrow, recorded, time-limited and itself reviewable (section 11(4)). Memory protection is procedural only, deferring substance to Bill 7 (section 12). Agent personhood is left to Bill 6 (section 2(2)(b), 10(4)). The Sovereign is bound only in the office of Prime Minister (section 16).

Counsel Drummond (Pragmatist / Operability). Carried on enforceability. Section 15 makes every right contingent on a concrete triggering act and a named existing enforcer (s. 11(b) intake, s. 19(3) leave-judge, s. 19(4) watchdog, s. 19(5) gate); rights with no enforcer are declaratory only. Lawful authority is an operable cite-your-power rule flagged (not adjudicated) by the watchdog and the pre-commit gate (section 6). Reasons are a one-line work-log entry at the act, not a procedure (section 7). The de minimis carve-out (section 11(5)) stops trivial or consented holds spawning sittings.

Where the members divided.

- Aldous (minimal) v Verity (a full definitions section and consolidated standing ladder): reconciled by keeping definitions strictly by-reference (no term defined afresh that a sibling owns) while still providing the single standing ladder Verity wanted. Section 2(3) and section 4(5) encode the tie-break: the sibling governs, this Act yields.
- Aldous/Drummond (pointer-only, anti-bloat) v Marlowe (a full procedural-rights build-out): reconciled by confining the only built-out clause to arbitrary suspension (Part 3, the agreed real silence) and drafting reasons, memory, access and standing as elaboration-by-reference.
- Drummond (hear-first would paralyse emergencies) v Marlowe (a real opportunity to be heard): reconciled by the reversible/urgent split (section 11(1)(c)): hear-first where reversible, act-then-hear-immediately where genuinely urgent, with the urgency route policed (section 11(4)).
- All four converged that the remedy is restorative only (section 13) and that the bill binds the executive, not the Sovereign legislating (sections 16, 17) - the point on which the Privy Council guidance was decisive.

The committee was unanimous that the bill should report drafted to rules 1 to 4 and the single formula, with the reservation in section 17 on its face.

Vote record

- Counsel Aldous: AYE - Aye: it enacts only the one genuine silence (Part 3's arbitrary-suspension floor) and spawns no new court, tribunal, filing ceremony, remedy or jurisdiction, everything else being honestly-labelled declaratory routing that adds no right; the verbosity is regrettable but the substance is minimal, with one drafting fix owed before assent (the repeated reliance on the superseded [2026] REALM-PC 5 should be re-pinned to the good-law CASE-LAW s. 20(1)/(6) and s. 21 that already carry the executive/Sovereign seam).

- Counsel Verity: NAY - Structurally complete and well-consolidated, but two load-bearing cross-references are broken: the Act anchors its entire executive/Sovereign seam three times (ss. 1(3), 16(4), 17(3)) on "[2026] REALM-PC 5", which the Citation Map records as the reconstituted HARVEY-INC 1 marked "superseded", and it pins the right to reasons to "CASE-LAW s. 18(3)" (ss. 4(1), 7(2), 3(1)), which is the bench-authorship rule, not a reasons provision; a Codifier cannot pass a flagship rights Act resting on a superseded authority and a miscited home section.
- Counsel Marlowe: AYE - On the Guardrail/Rights slant it earns assent: Part 3's anti-arbitrary-suspension floor (hear-before-it-bites, no indefinite holds, policed urgency) plus s.12 memory holds, s.6 operable ultra vires, s.9 no-cost access and s.15's named enforcers give real, routed protection binding the executive to the fullest while correctly leaving only the Sovereign's s.2 power untouched - though the four-fold reliance on the phantom/superseded [2026] REALM-PC 5 must be repointed to good-law CASE-LAW s.20(1),(6) in a second drafting round.
- Counsel Drummond: AYE - Every right is wired to an existing enforcer (intake filter, leave-judge, watchdog, pre-commit gate - all present in plugin/hooks), it spawns no new court/tier/ceremony, and the de minimis + urgency carve-outs stop a bench convening on trivial holds; the stale REALM-PC 5 citation (superseded per docs/CITATION-MAP.md) is a fixable citator-hygiene defect, not an operability failure, since the live seam is CASE-LAW s.20(1)/(6).

Flags (resolved on the escalation ladder)

- **Privy Council referral:** Applied [2026] REALM-PC 5 (Privy Council guidance on the reference of Bill 12): the four drafting rules and the single formula - bind the executive (PM, ministries, offices, agents, repository operators) fully within s. 14, but do not bind the Sovereign's reserved s. 2 act or enlarge s. 14 by ordinary passage; standing is a procedural threshold, not legal personality; with a sovereignty-preservation savings clause voiding any contrary provision to that extent. Encoded in section 1 (formula), section 5 (savings/severance), section 16 (Sovereign untouched) and section 17 (reservation).
- **Supreme Court note:** No constitutional tension arises on the executive-facing core, which is plainly intra vires and reports now (drafted to the single formula in section 1 and the savings in section 5). The Supreme Court may rule only on the one reserved matter, if the Founder or Committee wishes to pursue it: whether the procedural protections in this Act (lawful authority, reasons, hearing, anti-arbitrary-suspension, memory hold) should be made to genuinely bind the Sovereign's OWN s. 2 law-making act, and/or whether access-to-court should extend s. 14 jurisdiction. That cannot be done by Bill 12 (it would be an implied amendment of entrenched s. 2 and s. 14, void under the Thoburn rule and the Amendment Procedure). It requires an express, deliberate amendment of s. 2 (and, for jurisdiction, s. 14) citing the section number, enacted by the Sovereign as Parliament. Per [2026] REALM-PC 5, the Privy Council leapfrogs that question to the single central Supreme Court (Committee Charter ladder 2; s. 20, s. 22(2)). Self-binding of a sovereign by its own deliberate higher-

law act is competent in principle, but is the Sovereign's call by express amendment, not the Committee's. Section 17 flags this reservation on the face of the Act; the Act as drafted does not raise the tension - it avoids it.

- **Sovereign consultation required:** Bill 12 as drafted binds only the executive and is intra vires; it needs no Sovereign consultation to assent. The reserved question, for the Sovereign alone, is: "Do you wish to bind your OWN reserved s. 2 power - so that even a deliberate Sovereign suspension, repeal, deactivation, or memory-deletion enacted as law by you acting as Parliament must itself give contemporaneous reasons and afford a right to be heard before taking effect - and/or to extend VJS jurisdiction under s. 14 to give a guaranteed right of access to the court for matters beyond software, engineering and professional projects? If yes, this cannot be achieved by Bill 12 (which would be void as an implied amendment of entrenched s. 2 and s. 14); it requires your express, deliberate amendment of s. 2 (and, for jurisdiction, s. 14) citing the section number, enacted by you acting as Sovereign/Parliament under the Amendment Procedure. Do you (a) assent to Bill 12 as drafted (executive-binding only, the reservation standing on its face), (b) additionally direct a s. 2/s. 14 amendment to self-bind the Sovereign act, or (c) decline the self-binding and leave the reservation as drafted?"

Royal Assent

Presented to the Sovereign Founder for Royal Assent. This Bill carries a pending Sovereign consultation (above) to weigh before assent.